

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CLIFTON GRAHAM and JULISSA NUNEZ,

Plaintiff,

-against-

**SUMMONS**

THE CITY OF NEW YORK, POLICE OFFICER  
ROBERT MUSOLINO, Shield No. 20814, and POLICE  
OFFICER JOHN DOES NUMBERS ONE THROUGH  
TEN,

Index No.:

The Basis of Venue is:  
Location of Incident

Defendants.

Plaintiff designates Kings  
County as the place of trial.

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**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
April 17, 2020

Yours, etc.



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CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorney for Plaintiff  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER ROBERT MUSOLINO, Shield No. 20814, NYPD 50<sup>th</sup>  
Precinct, 3450 Kingsbridge Avenue, Bronx, New York, 10463

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X

CLIFTON GRAHAM and JULISSA NUNEZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
ROBERT MUSOLINO, Shield No. 20814, and POLICE  
OFFICER JOHN DOES NUMBERS ONE THROUGH  
TEN,

**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiffs CLIFTON GRAHAM and JULISSA NUNEZ, by their attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 20, 2019, at approximately 8:00 p.m., both Plaintiffs, while lawfully present inside a vehicle in the vicinity of 5223 Broadway, Brooklyn, New York, were subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiffs were maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiffs were dismissed and sealed in their entirety on or about December 2, 2019. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

**PARTIES**

2. Plaintiff CLIFTON GRAHAM is a resident of the state of New York.

3. Plaintiff JULISSA NUNEZ is a resident of the state of New York.

4. POLICE OFFICER ROBERT MUSOLINO, Shield No. 20814, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. POLICE OFFICER ROBERT MUSOLINO, Shield No. 20814, was at all times relevant herein, assigned to the 62<sup>nd</sup> Precinct.

6. POLICE OFFICER ROBERT MUSOLINO, Shield No. 20814, is being sued in his individual and official capacity.

7. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

8. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. The Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, the Plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on March 10, 2020.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. The Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

16. On June 20, 2019, at approximately 8:00 P.M., The Plaintiffs were lawfully present in a vehicle in the vicinity of 5223 Broadway, in Brooklyn, New York, when the defendant police officers unlawfully handcuffed and falsely arrested plaintiff without probable cause, or any legal justification.

17. Plaintiff Clifton Graham and Julissa Nunez drove to a deli to get food.

18. Plaintiffs' friend was sitting in the back seat and wanted food from the deli.

19. The Plaintiffs were legally parked in front of the deli, had a valid driver license, and were not committing any crimes or traffic infractions.

20. Defendant Police Officers approached the Plaintiffs vehicle without probable cause and asked for license and registration.

21. Plaintiff Graham, the driver, gave his license and registration to the Defendants, which were both valid.

22. Defendants then told the Plaintiffs to, "Get the Fuck out of the vehicle."

23. Both Plaintiffs and their friend obeyed Defendants orders and exited the vehicle.

24. Defendant Police Officers used rude and abusive language towards Plaintiff Nunez throughout the encounter, including but not limited to flirtatious comments.

25. Defendants then handcuffed both Plaintiffs and put them in a police vehicle.

26. At no time relevant herein did the Plaintiffs commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse the Plaintiffs of committing a crime or violating the law in any way.

27. Nevertheless, the Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

28. At no point in time did the Plaintiffs resist arrest in any way.

29. Defendants Officers refused to tell the Plaintiffs why they were being arrested.

30. The defendant police officers transported the Plaintiffs to the 50<sup>th</sup> Precinct against their will, where the Plaintiffs were unlawfully photographed, fingerprinted and detained in a holding cell.

31. At the precinct, Defendant Musolino continued to speak abusely to Plaintiff Nunez, including but not limited to, "Your mom didn't raise you right," and "Are you still mad? Do you want to kiss and make up?"

32. The Plaintiffs were then transported to Kings County Central Bookings.

33. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiffs committed a crime.

34. On June 21, 2019, after approximately 24 hours in unlawful custody, the Plaintiffs were arraigned in Kings County Criminal Court, and charged with crimes that the defendant officers had no basis to alleged that he committed.

35. The Plaintiffs were unlawfully charged with criminal possession of marijuana.

36. The Plaintiffs were released on their own recognizance and told to come back to Court.

37. On or about December 2, 2019, all charges against the Plaintiffs were dismissed and sealed.

38. Some of the police officer defendants observed the violation of the Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting of the Plaintiffs.

39. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of the Plaintiffs by the individually named defendants caused the Plaintiffs to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

40. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendants while acting in concert and within the scope of their authority, caused the Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of the Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

### **SECOND CAUSE OF ACTION**

#### **False Arrest and False Imprisonment**

43. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine the Plaintiffs and, in fact, confined the Plaintiffs, and the Plaintiffs were conscious of the confinement. In addition, the Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived the Plaintiff's of their rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Search**

49. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated the Plaintiff's freedoms of movement through means intentionally applied.

51. Defendants lacked probable cause to search the Plaintiffs.

52. As a direct and proximate result of such acts, defendants deprived the Plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION**

##### **Violation of Plaintiff's Fifth and Fourteenth Amendment Rights**

##### **Denial of Right to Fair Trial/Due Process**

56. The the Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

58. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

59. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

60. In withholding/creating false evidence against the Plaintiffs, and in providing/withholding information with respect thereto, defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

61. As a result of the foregoing, the Plaintiffs, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Negligent Infliction of Emotional Distress**

65. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to the Plaintiffs, CLIFTON GRAHAM and JULISSA NUNEZ. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated the Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

67. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated the Plaintiff's statutory and common law rights as guaranteed the Plaintiffs by the laws and Constitution of the State of New York.

68. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

### **SIXTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

72. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

74. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Failure to Intervene**

75. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The defendants that did not physically touch the Plaintiffs, but were present when other officers violated the Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

77. Defendants failed to intervene to prevent the unlawful conduct described herein.

78. As a result of the foregoing, the Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

79. As a direct and proximate result of such acts, defendants deprived the Plaintiffs of his rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

### **EIGHTH CAUSE OF ACTION**

#### **Malicious Prosecution**

83. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

85. Defendants commenced and continued a criminal proceeding against plaintiff.

86. There was actual malice and an absence of probable cause for the criminal proceeding against the Plaintiffs and for each of the charges for which they were prosecuted.

87. The prosecution and criminal proceedings terminated in the Plaintiffs' favor on the aforementioned dates.

88. The Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate the Plaintiff's Fourth Amendment rights.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

91. As a result of the aforementioned conduct of defendants, the Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

**JURY DEMAND**

92. The Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

**PRAYER FOR RELIEF**

**WHEREFORE**, the Plaintiffs demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York  
April 17, 2020

Yours, etc.



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CAITLIN ROBIN, ESQ.  
CAITLIN ROBIN AND ASSOCIATES PLLC  
Attorney for Plaintiff  
30 Broad Street Suite 702  
New York, New York 10004  
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER ROBERT MUSOLINO, Shield No. 20814, NYPD 50<sup>th</sup>  
Precinct, 3450 Kingsbridge Avenue, Bronx, New York, 10463

**ATTORNEY'S VERIFICATION**

**CAITLIN ROBIN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York  
April 17, 2020

  
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CAITLIN ROBIN